## MAMATA MAKES A POINT

# THE DEATH FOR RAPE BILL

**The Aparajita Woman and Child (West Bengal Criminal Laws Amendment) Bill, 2024 proposes amendments and omissions in the Bharatiya Nyaya Sanhita (BNS), 2023 and Protection of Children from Sexual Offences (POCSO) Act, 2012. Salient points:**

- Section 64 of BNS punishes rape with a minimum of 10 years in prison up to life imprisonment, along with fine. The Aparajita Bill removes the lower cap of 10 years; proposes the convict be in prison for life or face the death penalty and fine
- Section 66 of BNS says if a rape victim dies/ is left in a vegetative state, the punishment is imprisonment for a minimum of 20 years, or life imprisonment and fine. The bill proposes mandatory death penalty, fine
- Punishment for gangrape under Section 70 (1) of the BNS is rigorous imprisonment for a minimum of 20 years, or life in prison and fine. The bill only proposes life imprisonment or death and fine
- Sections 124(1) and (2) of BNS, which deal with punishment for acid attacks, are proposed to be amended with life terms. The state bill proposes omission of Sections 65(1), 65(2) and 70(2) of BNS, abolishing the categorisation of victims by their age and introducing blanket punishment
- Sections 4(1) and (2) of the POCSO Act deal with punishment for penetrative sexual assault against children. The new bill abolishes the lower cap of imprisonment for 10 years and 20 years, respectively, with life term or death and fine
- Punishment for sexual assault against children under Section 8 of BNS is 3–5 years; the bill increased it to 7–10 years. The same has been proposed for those committing aggravated sexual assault against children under Section 10 of the POCSO Act

### THE PROBLEM
### MANDATORY DEATH PENALTY

- The proposal for mandatory capital punishment is in contradiction with the Constitution
- In the 1983 *Mithu v. State of Punjab* case, the Supreme Court struck down Section 303 of the IPC as unconstitutional
- The section stated that anyone who commits murder while serving a life sentence for imprisonment will be (mandatorily) punished with death
- Going by this principle, mandatory death sentences in the state bill can be deemed unconstitutional. The president—with whom the Aparajita Bill rests for assent—can raise this point and return it

shows that the protests against the RGKMCH case have impacted the mood in smaller towns and villages as well. This finding has spread consternation within the TMC, which draws its core strength from the rural electorate. "The tipping point was appointing Sandip Ghosh as the principal of another medical college even though he was the custodian of RG Kar when the incident took place," says a TMC source.

**A survey by the TMC shows Mamata and the party's popularity has plummeted even in rural West Bengal**

Meanwhile, the protests show no sign of dying down. On September 2, junior doctors demanding the resignation of Kolkata police commissioner Vineet Goyal marched to the police headquarters in Lalbazar. Stopped by the police about 500 metres from the Raj-era compound, they staged a sit-in on the road for over 22 hours until Goyal relented. Throughout the night, residents supplied the doctors with food, water and other amenities. It showed how a spirit of solidarity—forged through a commonly felt sense of outrage and shame—had taken hold of the city. The city has seen three "Reclaim the Night" protests so far—on August 14, September 4 and 8.

On September 8, a 14-km-long human chain spanned the distance between Sodepur—the victim's home, on the outskirts of Kolkata—and Shyambazar, near RGKMCH. On the same day, a "global human chain" demanding safety of women and justice for the victim was organised in over 90 cities across 14 countries. On September 4, when junior doctors requested Kolkatans to switch off lights between 9 pm and 10 pm, in memory of the victim, hundreds of thousands obliged.

With no major election till the assembly polls in 2026, the TMC may yet be spared the worst of the public wrath. Mamata still has over a year to rebuild her equity. In the short term, her party hopes that the upcoming Durga Puja season will help dilute some of the great anger consuming Bengal today. ■